

approved by resolution of each House, and no such Order shall be made so as to come into force before the first day of April, nineteen hundred and sixty-five.

Short title.

2. This Act may be cited as the Commonwealth Teachers Act, 1960.

CHAPTER 41

An Act to make provision as to the operation of the law in relation to Ghana and persons and things in any way belonging to or connected with Ghana, in view of Ghana's becoming a Republic while remaining a member of the Commonwealth. [2nd June, 1960]

WHEREAS Ghana is to become a Republic while remaining a member of the Commonwealth:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Operation of
existing law in
relation to
Ghana.

1.—(1) On and after the date on which Ghana becomes a Republic, all existing law, that is to say, all law which, whether being a rule of law or a provision of an Act of Parliament or of any other enactment or instrument whatsoever, is in force on that date or has been passed or made before that date and comes into force thereafter, shall, until provision to the contrary is made by an authority having power to alter that law and subject to the provisions of this Act, have the same operation in relation to Ghana, and to persons and things in any way belonging to or connected with Ghana, as it would have had if Ghana had not become a Republic.

(2) This section extends to law of, or of any part of, the United Kingdom, Southern Rhodesia, a colony, a protectorate or a United Kingdom trust territory:

Provided that this section—

(a) does not extend to any law passed by the Federal Legislature of Rhodesia and Nyasaland;

- (b) extends to other law of, or of any part of, Southern Rhodesia so far only as concerns law which can be amended neither by a law passed by the Legislature thereof nor by a law passed by the said Federal Legislature; and
- (c) extends to other law of, or of any part of, Northern Rhodesia or Nyasaland so far only as concerns law which cannot be amended by a law passed by the said Federal Legislature.

The references in this subsection to a colony, to a protectorate and to a United Kingdom trust territory shall be construed as if they were references contained in the British Nationality Act, 11 & 12 Geo. 6. 1948. c. 56.

(3) Her Majesty may by Order in Council make provision for such modification of any Act of the Parliament of the United Kingdom passed before Ghana becomes a Republic, or in any instrument having effect under any such Act, as may appear to Her to be necessary or expedient in view of Ghana's becoming a Republic while remaining a member of the Commonwealth, and subsection (1) of this section shall have effect in relation to any such Act or instrument as modified by such an Order save in so far as the contrary intention appears in the Order.

An Order in Council under this section—

- (a) may be made either before or after Ghana becomes a Republic, and may be revoked or varied by a subsequent Order in Council; and
- (b) may, though made after the date on which Ghana becomes a Republic, be made so as to have effect from that date; and
- (c) shall be subject to annulment in pursuance of a resolution of either House of Parliament.

2.—(1) Her Majesty may by Order in Council confer on the Judicial Committee of the Privy Council such jurisdiction in respect of appeals to Her Majesty in Council from a court or judge in Ghana which are pending immediately before the date on which Ghana becomes a Republic, and in which the records have been registered in the office of the Privy Council before that date, as appears to Her to be appropriate for giving effect to any arrangements between Her Majesty's Government in the United Kingdom and the Government of Ghana for any such appeals to be continued before and disposed of by that Committee.

Pending
appeals to
Her Majesty
in Council.

(2) An Order in Council under this section may, if the arrangements so require, direct that any appeal continued before the Judicial Committee of the Privy Council under this section shall

abate on a date specified in the Order unless it has been heard by the Committee before that date, and an Order containing such a direction may contain provisions to facilitate the hearing of any such appeal before that date, including provisions as to the sittings of the said Committee and provisions for expediting the steps to be taken by the parties preliminary to the hearing of an appeal.

(3) An Order in Council under this section—

- (a) may determine the practice and procedure to be followed on any appeal continued before the said Committee under this section and, in particular, may provide for the form of any report or recommendation to be made by the Judicial Committee of the Privy Council in exercise of the jurisdiction conferred on that Committee under this section, and for its transmission to such authority in Ghana as may be specified in the Order, and
- (b) may contain such other incidental and supplemental provisions as appear to Her Majesty to be desirable, and
- (c) may be made either before or after Ghana becomes a Republic, and may be revoked or varied by a subsequent Order in Council, and
- (d) may, though made after the date on which Ghana becomes a Republic, be made so as to have effect from that date.

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(4) Except so far as otherwise provided by an Order in Council under this section, and subject to such modifications as may be so provided, the Judicial Committee Act, 1833, shall apply in relation to appeals continued before the Judicial Committee of the Privy Council under this section as it applied in relation to those appeals before Ghana became a Republic.

(5) Subject to the provisions of any Order under this section, nothing in this Act shall be construed as continuing in force any right of appeal to Her Majesty in Council from any court or judge in Ghana.

Short title.

3. This Act may be cited as the Ghana (Consequential Provision) Act, 1960.
